

Court No. - 38

Case :- WRIT - C No. - 5674 of 2019

Petitioner :- Raj Kumar

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyay,J.

Hon'ble Jayant Banerji,J.

Learned counsel for the petitioner submits that he will file appropriate amendment application for making appropriate prayer in the writ petition.

As prayed, put up this case on 26.2.2019 as fresh.

Order Date :- 21.2.2019

SKM

(Jayant Banerji,J.)

(Abhinava Upadhyay,J.)

Court No. - 34

Case :- WRIT - C No. - 5674 of 2019

Petitioner :- Raj Kumar

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

Civil Misc. Amendment Application No. 2 of 2019.

1. Heard Sri Sanjay Kumar Singh, learned counsel for petitioner, Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondent no. 2.

2. Amendment application is allowed.

3. Let necessary amendment be carried out during the course of day.

Order Date :- 26.2.2019

Manoj

Court No. - 34

Case :- WRIT - C No. - 5674 of 2019

Petitioner :- Raj Kumar

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Sanjay Kumar Singh, learned counsel for petitioner, Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondent no. 2.

2. It appears that a checking was made by raid team on 24.6.2018 at petitioner's house. Checking team found theft of electricity at the premises of petitioner for which First Information Report under Section 135 of Electricity Act, 2003 (hereinafter referred to as 'Act, 2005') was lodged in Police Station, Ganjdudwara, District Kasganj. Besides, respondents also initiated proceedings for assessment under Section 126 of Act, 2003 by Executive Engineer concerned. Against provisional assessment petitioner made representation before Authority concerned but the same has been rejected.

3. For provisional assessment, Authority concerned was required to comply with the provisions contained in Para 6.8 of Uttar Pradesh Electricity Supply Code-2005 (hereinafter referred to as "Code, 2005") as held by a Division Bench Judgement of this Court in **Ashok Kumar and others vs. State of U.P. And others, 2008 (6) ADJ 660**, which was followed in a number of cases subsequently.

4. The impugned order is wholly non speaking and shows that requirements of Para 6.8 of Code, 2005 have not been fulfilled nor Assessing Authority has applied its mind before issuing

assessment order in question.

5. In the result, impugned order dated 5.12.2018 cannot be sustained and the same is hereby set aside. Now, Assessing Authority may proceed for assessment in accordance with law in the light of provision contained under Para 6.8 of Supply Code, 2005 and as per law laid down in **Ashok Kumar** (*Supra*).

6. Writ petition is, accordingly, **allowed**.

7. Since Assessing Authority on account of his illegal action has compelled petitioner to file this litigation, we also award a cost of Rs. 5000/- against the respondent no. 2 which shall be paid to petitioner.

Order Date :- 26.2.2019

Manoj